

judgment as provided in the Family Code.” Finally, it does not appear that the judgment creditor must join the spouse of a judgment debtor to the underlying lawsuit. Section 706.109 of the Code of Civil Procedure only requires a noticed motion.

By a preponderance of the evidence, this court finds that Ms. Aholkovi was properly noticed of this Motion. What’s more, this court finds that Ms. Aholkovi is the spouse of Defendant, and that her earnings are properly subject to attachment as community property.

Disposition

Plaintiff’s Motion is granted.

Plaintiff to file Order and provide notice of Order to Defendant.

**4. 9:00 AM CASE NUMBER: L24-03277
CASE NAME: WELLS FARGO BANK, N.A. VS. JUAN CANJURA**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,682.46, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,355.46.

Costs are \$300.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,627.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L24-05503
CASE NAME: TRUIST BANK, IN SUCCESSOR BY MERGER TO SUNTRUST BANK VS. MARIA QUILARIO
MOTION FOR ENTERING JUDGMENT PURSUANT TO DEF DEFAULT UNDER SETTLEMENT FILED BY
PLN ON 4/2/26
FILED BY: TRUIST BANK, IN SUCCESSOR BY MERGER TO SUNTRUST BANK

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation, along with a Declaration. The Motion and its supporting documents are timely.

This Motion is unopposed.

A Notice of Conditional Settlement was filed on 10/24/24, but no dismissal was ever filed with the court.

Analysis

Mail service was completed at an address where Defendant was personally served with process. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement, included in the Declaration, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$29,647.59, plus costs, less any credits for